

An explanatory paper accompanying the contemporary dance piece, *“Even when we win, we lose”*, choreographed and performed by Madison Grist (Final Assignment for Law 353D)

When Earl Claxton Jr. spoke to our class, he said something that I will carry with me throughout my legal career. In articulating his frustrations with the treaty and title litigation processes he said, “even when we win, we lose”. This statement inspired my work on this piece. Moved by his comments, I have, through my own lens, attempted to portray the challenges that Earl Claxton Jr. and others have faced in asserting their rights in settler Canadian systems. I will address specific themes and elements of my work below.

First, I want to acknowledge and honour the incredible courage that Earl Claxton Jr., Terri-Lynn Williams-Davidson and Glen Williams demonstrated in sharing their experiences with us. I want to equally recognize that as a non-Indigenous law student I could never begin to imagine the challenges and adversity that are intertwined in their stories. The beauty of dance is that it allows you to step into the shoes of others, to empathize, to emote, and to tell a story. That is what I have set out to do with this work.

The song I have chosen is entitled “Elegy for the Arctic”, a piece that was created as a call for greater protection of our arctic. A haunting video of Ludovico Einaudi performing his work amongst melting icebergs can be seen at <https://www.youtube.com/watch?v=2DLnhdnSUVs>. I chose this piece of music for a few key reasons: First, because it evoked feelings of reverence towards the Earth and the importance of our connection with it, as many of the cases we studied were grounded in this theme. Second, because the music repeats itself in part, at first building in intensity and speed, and later repeating more slowly and warily than before. This captured how

litigation has advanced Indigenous issues, building on the success of prior cases, while equally presenting unfavourable outcomes and set-backs that force us to question how far there is yet to go. Moreover, I chose this piece because I found myself challenged by the time signature and the song's free and inconsistent tempo (*tempo rubato*). This meant having to perform in an awkward and unfamiliar environment, where I felt unsteady. This represented the unfamiliarity of the Canadian court system and how Indigenous people have had to bend to fit the molds of how evidence is collected and presented. I drew on Terri-Lynn Williams-Davidson's experience interviewing members of her community during litigation, specifically when she shared how uncomfortable it was to ask Elders questions in direct examination, and to watch them be cross-examined by others.

In the piece, you will see me move (hopefully fluidly) from standing choreography to floor work, which is in line with the general theme of connection to the Earth, as well as having the resiliency to face a set-back and choosing to rise again. I start with a single sequence of choreography, that culminates with me placing my hand to my mouth, sharing a story, and striking my hand away. This sequence of choreography was intended to mirror the initial trial decision in *Delgamuukw v British Columbia*.¹ In touching my mouth and then striking my hand away, I attempt to depict the act of sharing a history, only to be told that your story did not amount to evidence, and that your community's way of life amounted to no more than a "primitive existence". However, I pick the story back up, place it back on my chest and continue on.

¹1991 CanLII 2372 (BC SC), 79 DLR (4th) 185.

The piece continues to build and the music crescendos. At this point, I run and jump while turning in a large circle. This denotes the resource intensive and exhausting nature of the litigation process. I end wearied, falling down – allowing myself only a second before rising back to my feet.

I then repeat a sequence of choreography from earlier in the piece, this time starting later in the sequence, demonstrating growth forward. You will see me push my arms to my sides and I will stand for a moment in a powerful wide stance, signifying successful outcomes, such as the *Tsilhqot'in Nation v British Columbia*² and *Saanichton Marina Ltd. v. Claxton*³ cases. I allow myself a second to absorb those “wins”. Nevertheless, the process begins again. I end by repeating the sequence from the very beginning, remembering that “even when we win, we lose”, while reflecting on the process in a mirror.

I want to sincerely thank you for allowing our class the opportunity to pursue creative endeavors in fulfilling this final assignment. I have danced my entire life and prior to law school it was my greatest passion, as well as my career. However, I had to set it aside in first-year and it has been three years since I set foot in a studio. Working on this piece allowed me to reconnect with my art – thank you!

² 2014 SCC 44, [2014] 2 SCR 257.

³ [1989] BCJ No 563.